



File No.: EXP202301411

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST:

A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on January 23, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR.

In her submission, she stated that on the property owned by the respondent, which is adjacent to hers, two video surveillance cameras are installed that, due to their location and orientation, are capable of capturing images of her property without prior authorization.

The complainant claims to have reported these facts to the Mossos d'Esquadra, as a result of which the corresponding preliminary proceedings were initiated, which concluded with an order from the Investigating Court (...) dated October 4, 2022, for provisional dismissal and filing of the proceedings.

This order was submitted along with the complaint, highlighting the following legal reasoning:

"From the statement of the investigated party, it follows that, while it is true that security cameras are installed, it is equally true that there is no intent to intrude on the privacy of the complainants, but rather that these cameras are installed due to various problems with the complainants, with the camera having a volumetric sensor that only captures images of persons approaching the perimeter fence of the barbecue area.

The elements of the objective type, and much less of the subjective type of the reported criminal offenses, are not present, especially since there is no intent to violate the privacy of the complainants or to discover or reveal their secrets. [...]

Additionally, various photographs showing the location of the cameras on the adjacent property belonging to the respondent are submitted along with the complaint.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on February 21, 2023, as evidenced by the acknowledgment of receipt in the file.

On March 22, 2023, a response from the respondent was received by this Agency. In it, the existence of the aforementioned order of provisional dismissal was stated, which is provided as attached documentation. Furthermore, it asserts that its surveillance system complies with all the requirements mandated by current regulations.

The respondent also attached to its submission an action plan and an installation contract with SECURITAS DIRECT, which shows the acquisition of this surveillance system, including as an extension to the Basic kit the "Volumetric Detector Via Radio STD SD Milenium." Additionally, various photographs of external signs on the property of the security company are included.

In light of this fact, on March 23, 2023, this entity made a new request for documentation from the respondent, granting five days for its response, with the following text:

"Given the documentation provided, it is evident that a significant portion of the requested documentation has not been submitted, therefore it is requested again within the established timeframe, in this writing:

- Indicate the NIF number and the contact email of the person responsible for the video surveillance system.
- Indicate the number of cameras in the surveillance system, providing photographs of all these devices, as well as photographs of the monitor, mobile screen, or equivalent system used to view the

images, showing the areas that fall within the field of vision of the cameras. The cameras must not, under any circumstances, record or allow the viewing of adjacent lands that are not owned by you, nor the interior of homes or any other private or reserved space, nor the public road, except for the minimally necessary portion of the public road for the intended security purpose.

- If the cameras capture, even minimally, the public road, you must also provide photographs of the sign or signs that warn of the existence of a video surveillance area, clearly showing the information contained in the sign (in any case, the person responsible for the video surveillance system and its address must be indicated), as well as the location of the sign.
- If the surveillance system records images, indicate the retention period for these images.
- If the cameras are fake, provide the invoice, purchase receipt, or any other document that serves to prove that they are fake, or, failing that, provide a..."

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responsible declaration in which it states, under its responsibility, that the cameras are fictitious.

- If the cameras are not operational or have been removed and, therefore, do not allow for the viewing or recording of images, a responsible declaration may be provided.
- Any other information that it considers relevant and that may serve to assess the adequacy of the video surveillance system to data protection regulations.

The notification of the aforementioned communication was carried out in accordance with the rules established in the aforementioned LPACAP, being notified on 03/04/2023, as evidenced by the acknowledgment of receipt in the file.

During the period indicated in the request, no documentation of any kind was received from the party being claimed against.

THIRD: On April 23, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claiming party was admitted for processing.

FOURTH: On May 12, 2023, a new document was received from the party being claimed against, through which it again attached an order of dismissal, reiterating its content and emphasizing its firmness. In this document, the requested documentation by this entity was also not provided.

FIFTH: On July 5, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the party being claimed against, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

The notification of this agreement was also carried out in accordance with the rules established in the LPACAP, being notified on 27/07/2023, as evidenced by the acknowledgment of receipt in the file.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the party being claimed against.

Article 64.2.f) of the LPACAP - a provision of which the party being claimed against was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the party being claimed against, and the sanction that could be imposed. Therefore, considering that the party being claimed against has not made allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

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In view of all the actions taken by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The claimant 2023 filed a complaint with the Spanish Agency for Data Protection stating that the defendant installed two surveillance cameras that captured images of the property owned by the claimant. The existence of the aforementioned video surveillance system has been substantiated through the photographs submitted along with the complaint, which show the location of the cameras on the neighboring property belonging to the defendant. This fact has also been confirmed by the latter through the response provided in accordance with the transfer made by this authority, which is also part of the present procedure and in which the contracts for the installation of the video surveillance system with the security company were submitted.

SECOND: From the instruction of the present procedure, it has been established that these cameras capture images beyond the perimeter of the claimant's property. This fact is derived, on one hand, from the aforementioned contract for the acquisition of the video surveillance system, which highlights the indication of the acquisition of the "STD SD Mileniun Radio Volumetric Detector," whose function is to capture photographs in case a person approaches the perimeter of the property, as asserted by the claimant.

On the other hand, this image capturing has also been substantiated by the order of dismissal from the Court of Instruction number 5 of Igualada, issued based on a complaint filed by the claimant, which highlights the assertion that one of the installed cameras has "a volumetric sensor that only captures photos of people who approach the perimeter fence of the barbecue area." Therefore, it is stated that images are captured regarding those individuals who, like the claimant, while being within their property, have their image captured if they approach the perimeter fence of the defendant's property.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Similarly, images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system is in accordance with the provisions established in the GDPR.

III

Principles of processing

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.

However, the processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. The principle of data minimization contained in Article 5.1.c) of the GDPR states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This implies that in a given processing, it is only possible to process the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which they are processed. Furthermore, the processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of the data must occur both at the time of data collection and in the subsequent processing carried out on them.

In accordance with the aforementioned, the processing of excessive data must be restricted or, if applicable, proceed to their deletion.

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The application of the data minimization principle in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can, in principle, only be carried out by the Security Forces and Corps, with prior governmental authorization. However, on some occasions, in order to protect private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the aforementioned security purpose.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. In such cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

In no case is the use of surveillance practices beyond the environment subject to installation permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Furthermore, installed cameras cannot capture images of third-party private spaces and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted. Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the individuals present in those spaces.

Additionally, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, whether public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that

motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be complied with.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time the existence of the recording is known.

6.- The data controller must maintain a record of the activities of the processing carried out under their responsibility, which must include the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, assess them, and, where applicable, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

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A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

It is also of interest, in case of carrying out low-risk data processing, the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Administrative infringement committed

In accordance with the evidence resulting from this sanctioning procedure, it is considered that the facts presented violate the provisions of Article 5.1.c) of the GDPR, according to which personal data shall be:

"c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are

processed ('data minimization');"

In this case, the aforementioned principle of data minimization has been violated, as the recording of the installed video surveillance system by the complained party exceeds what is necessary to fulfill its objective of ensuring security, also capturing images of private properties belonging to others, without justification for the retention and/or processing of the captured images.

On the other hand, the statement made by the complained party, consisting of the assertion that such facts were dismissed by a ruling of a judicial body, cannot be accepted. It must be taken into account that in that procedure what was evaluated was the concurrence of a specific type of crime, the commission of which required the intention to violate privacy, as indicated by the ruling itself.

Conversely, in this case, the infringing conduct consists, as indicated, in that the processed data has not been adequate, relevant, and limited to what is necessary regarding the purposes for which it was intended. Therefore, the fact that the judicial body dismissed the case has no effect on the legal assessment of this procedure, since the commission of the infringing conduct subject to this procedure does not require the existence of an intention to intrude on privacy, but rather it is sufficient to demonstrate that the infringer has not carried out adequate processing in accordance with the principle of data minimization. In fact, the ruling itself confirms the inadequate processing by the complained party, stating that one of the cameras captured images of individuals approaching the perimeter fence of part of their property, which exceeds the purpose of the processing.

Furthermore, the fact of capturing images beyond the property of the complained party has not been disproven by them at any time, as they did not provide the requested documentation during the transfer phase by this entity regarding the recordings and/or retention of the captured images, nor did they provide any documentation or make any allegations during the allegations phase granted by this entity through the initiation agreement of this procedure, which was duly notified in a timely manner by this authority.

VI

Sanction to be imposed

As stated in Article 83.5 of the GDPR, "Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; In this case and based on the facts presented, it is considered appropriate to impose a sanction on the complained party for the violation of Article 5.1.c) of the GDPR classified in Article 83.5 of the GDPR, consisting of the imposition of an administrative fine of 300 €.

VII

Measures to be imposed

Taking into account the infringement committed and the sanction imposed, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...", it is agreed to impose on the infringer the adoption of the following appropriate measures to adjust their actions to the regulations mentioned in this act:

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I certify that I have proceeded to remove the camera or video camera system from the current location or to reorient it, in such a way that the viewing of the images evidences that the common areas of the dwelling, the adjoining dwelling, and the public road are not captured.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €300 (THREE HUNDRED EUROS).

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within ten days, certify that they have proceeded to remove the camera or video camera system from the current location or to reorient it, in such a way that the viewing of the images evidences that the common areas of the dwelling, the adjoining dwelling, and the public road are not captured. It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

THIRD: NOTIFY this resolution to B.B.B.

FOURTH: Warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN:

ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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